GS FOUNDATION
BATCH FOR CSE 2024

Booklet -44

Modern India - 28

(Politics of Separatism, Act of 1909)

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GS Foundation 2024: Modern India

Handout 28: Politics of Separatism

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Please remember, in granting separate electorates we are sowing the dragon's teeth and the harvest will be bitter. – **Lord Morley**

History of the formation of Muslim League

During the last decade of the 19th century the Muslim elites, particularly in northern India, had been activated by an acute community consciousness. But at the time when Muslim League was formed in 1906-07, some nationalist historians looked upon this as a sort of a command performance by the Muslim leaders at the prodding of Lord Minto.

Lord Minto (1905-1910)

Lord Morley, SoS

Agha Khan III

What is Command Performance?

By 1906, Lord Minto had set up a committee to examine further constitutional reforms for India. This was followed by Morley's statement that some concrete steps were going to be taken to introduce the representative principle in the government in India.
October 1906, a **Delegation/Deputation** led by Agha Khan III met the Viceroy Minto at Shimla to impress upon him of the need of safeguarding rights and interests of Muslims in the promised elected representative body.

Three major demands:

- In any scheme of electoral representation, Muslims should get more representation than what their population warrants.
    - The position of the Indian Muslims should be determined not merely by their actual numbers but by the political importance and the services which it had rendered to the British empire in India.
- Muslims should be allowed to send their representatives to the new legislative councils through their separate electorates.
- Muslims should be given adequate representation in the local governing bodies and also in the higher services, both executive and judicial.

The success of the Muslim deputation to Lord Minto made the Muslim leaders very confident.

- They now felt the need of forming a Congress-like all-India organization of their own for protecting their political rights and interests particularly when Swadeshi movement was now mounting high and threatening to undo the Partition of Bengal which had created for the first time a Muslim majority province in British India.

December 1906, **Muslim League** was formed in Dacca in All India Mohammedan Educational Conference. Its leaders were *Aga Khan, Nawab Mohsin-ul-Mulk and Nawab Salimullah.*
Its objectives were:

- To protect the political rights and interests of the Muslims
  - Demand for separate electorates
  - Special safeguards for the Muslims in government services.
- To preach loyalty to the Raj
- To promote communal amity.

1906: Founders of the All India Muslim League after announcing the party's formation in Lucknow

It was a command performance:

Many modern historians have described this deputation led by Aga Khan as a command performance, something which was engineered by the British government from behind the scenes with the object of widening the gulf between the Hindus and Muslims of India.

- This **delegation was probably sponsored** by William Archbold, the Principal at Aligarh Anglo-Oriental College and Dunlop Smith, private secretary to Viceroy.
- **Lord Minto perhaps asked the delegates to set up an organization** and they decided to form the Muslim League.
- The formation of Muslim League in 1906 came **at the height of the Swadeshi movement**, exactly at the time when Swadeshi Movement needed greater support among Indians, including Muslims. It certainly introduced a very powerful dissenting element within the nationalist movement.
- The League soon became an **important British instrument to fight rising Indian nationalism**.
  - The League began to oppose every nationalist and democratic demand of the Congress.
  - Though the Muslim League and its upper class leaders had little in common with the interests of the Muslim masses, yet, the British encouraged the League to take up the leadership of the Muslim masses.

It was not a command performance:

- **Politics of identity:** Throughout the 1890s there were some very important issues that had driven wedges in the relationship between the two communities (e.g. cow protection movement, Hindi-Urdu language controversy and Nagari circular in UP, Shuddhi movement, music-before-mosque riots). In this context, the politics of identity became very crucial.
- **Politics of privilege:** In northern India where Muslim elites, which constituted the erstwhile governing classes, had lost power under the British order due to their denial to accept western English education. Congress demands competitive exams; electoral principle of representation was seen as a threat.

(A) Developments in North India:

It was responsible for Muslim elites to setup their own organizations.

- **Sayyid Ahmad Khan**, who had tried the United India Patriotic Association (1888) now formed **Mohammed Anglo-Oriental Defense Association (1893)** association with Theodore Beck.
    - The name itself actually suggests how there was an acute awareness about the need to defend the cultural identity of the Muslims elites.
- By the end of the decade, **Urdu Defence Association** was formed in 1899-1900 by **Nawab Mohsin-ul-Mulk.**

Ali Brothers

Emergence of Young Party at Aligarh

The Muslim upper classes continued the trend of separatism set by Sayyid Ahmed Khan in the midst of the Anti-Partition agitation and the revolutionary movement.

Sir Sayyid had felt that by practicing loyalism to the British, it would be easier for the Muslim elites to extract advantages. They were successful to some extent. But the behaviour of the United Provinces government towards the close of the decade when they passed the **Nagari resolution (1900)** convinced some younger members that this loyalist strategy was not going to pay any more dividends.

So, some followers of Sir Sayyid decided to discard the loyalist political line. Aligarh College had come under the new leadership of **Muhammad Ali** and **Shaukat Ali**. They sought the *support of the ulemas* to further their cause and were willing to move away from the British. They wanted a more *assertive political action* from the Muslim elites to get a better deal from the government. Thus, it was important for them to *create an outfit to exert greater pressure*

on the government in the same way that the Congress was doing. **Maulana Abdul Bari** became a moving spirit behind the new line of thinking.

But the old leaders like **Nawab Mohsin-ul-Mulk**, who had succeeded Sayyid Ahmad Khan as the leader of Aligarh Movement, did not like the growing hiatus between the Muslims and the British. He started working to that end through the Mohammedan Educational Conference.

(B) Developments in Bengal:

- The British policy of divide and rule, by propping up the Muslims against the Congress, was fine-tuned by Lord Curzon, who carried it out with a rare brazenness by **partitioning Bengal in 1905.**
- The Partition of Bengal in 1905 created a new province in British India where Muslims formed a majority. This event **increased political awareness among Indian Muslims.** Despite some opposition from a few leaders, the Muslim community generally supported the partition as it provided political and economic advantages.
- The **Swadeshi Movement further widened the gulf** between the Hindus and Muslims as the creation of a new province of East Bengal was supposed to favour the Muslims, which the Swadeshi Movement sought to annul.

Nawab Salimullah of Dacca

- By 1906, Swadeshi movement had reached a high crescendo and predictably the government adopted repressive measures. The first Lt. Governor of the new province of Eastern Bengal and Assam, **Sir Joseph Bampfylde Fuller**, who was *openly pro-Muslim*, was *particularly oppressive*. Such measures created an extremely adverse reaction in the British press (including the liberal SoS John Morley) and there was a likelihood that Fuller would be forced to resign.

The intensity of the Swadeshi movement, the Congress's acceptance of the boycott resolution and then the possibility of Fuller resigning were reasons for the Muslim elites of Eastern Bengal to feel somewhat nervous about the future. So, there was an initiative on the part Muslim leaders to defend the partition. Thus, there was emergency to form a separate organization of the Muslims.

So, these two developments (Aligarh and Bengal) converged to create the political process that eventually led to the formation of the Muslim League in 1906.

Morley Announcement, 1906: Morley suggested that representative government was the ultimate objective that the British were actually looking for. He made the announcement in 1906 budget speech in the House of Commons. So, Muslim elites made it a point to form a group and to see Minto in Shimla Deputation, in which they actually asked for safeguards for

minority. Minto responded favorably by asking them to form a separate organisation for the Muslim.

So, it was not really a common performance they had their **interest to protect,** there was a **political process going on among the Muslim elites from the 1890s onwards** that should be taken as the basic reasons for the Muslims to decide on the formation of a distinct political organization capable of defending their interests. The formation of ML was a more tangible expression of these initiatives.

In fact, as early as 1901, **Sir Muhammad Shafi** had advocated the formation of the Indian Muslim League, but it did not take any concrete shape.

Conclusion:

Whether or not the delegation headed by Aga Khan was part of a 'command performance' might be controversial. What is, however, noteworthy is that the basic demand of the delegation for a separate lectorate was accepted in the Act of 1909, which came to be known as Morley-Minto Reforms. A permanent wall was created between the Hindus and Muslims, who were to vote separately for the candidates of their own respective communities.

The Morley-Minto Reforms (1909)

Why was Indian Council act of 1909 introduced?

- The **early nationalists had been demanding the expansion of the Legislative Councils** to secure Indian membership of the Councils for elected representatives of the people. The British Government was forced by the nationalist agitation to pass the **Indian Councils Act of 1892.** But this Act **could not satisfy the nationalists**. They were looking for a larger share of power for the Indians.

- **Intensity of the Swadeshi movement** and the **spread of extremism** had forced upon the administration some new thoughts on constitutional reforms. The colonial government was **alarmed by the spread of revolutionary activities** in the beginning of the twentieth century. They now sought to check the movement by granting constitutional concessions to the Indians.

- There was a **realisation that India could no longer be ruled with a "cast iron bureaucracy".** Indians needed to be given some share of power; in both legislatures as well as executive council. Fresh thinking had started since 1906, as Secretary of State **Lord Morley, a liberal scholar**, urged Viceroy Lord Minto to balance the unpopular Bengal partition with reforms. The discussions on the constitutional reforms were initiated in Morley's **budget speech in 1906** in the House of Commons. He suggested that representative government was the ultimate objective that the British were actually looking for.

- The British Indian government sought to contain the rising tide of nationalism by the dual **policy of concession and repression.** The conciliatory side of the colonial policy found manifestation in various constitutional reforms. It was basically, an attempt to rally the moderates and thus divide the united front of nationalism.

The Indian Councils Act of 1909

It provided for limited self-government and therefore satisfied none of the Indian political groups. It was the most short-lived of all constitutional reforms in British India and had to be revised within ten years.

- **Executive**
  - The Act provided the appointment of Indians in GG executive council and the council of secretary of state for India.
    - Lord S.P Sinha became the first Indian member of G.G executive council. (as Law member)

        - Sayeed Hussain Bilgrami and K.G Gupta – earliest Indian to join India council (council of Secretary of State)

- **Legislature Powers**
    - It did allow somewhat greater power for budget discussion (but not vote on it), raising questions, sponsoring resolutions (but not pass laws) and request additional grants for local self-governing bodies. So, the **deliberative functions of the legislature were expanded.**
    - The Government executive retained the veto power.
- **Legislature Composition**
    - It increased the membership of non-officials (persons not holding positions in government) in the imperial and provincial legislative councils.
    - The number of additional members in legislative council was increased from 16 to 60.
        - **Official majority was retained in the Imperial Legislative Council**, which would have only 27 elected members out of 60; and out of those 27 seats, 8 were reserved for the Muslim separate electorate.
    - **Non-official majorities were provided for in the Provincial Councils**, but importance of this non-official majority was reduced by the fact that many of these non-officials were to be nominated by the government.
        - Example: The Bengal provincial legislature was given an elected majority, but four of the elected members were to represent European commercial interests, who were always expected to vote with the government.
- **Election**
    - The elective principle introduced by the Act of 1892 was extended, so that in 1910 more than a hundred indirectly elected Indians took their seats in the Councils.
        - Details of seat allocation and electoral qualifications were left to be decided by the local governments, and this left enough space for bureaucratic manipulation.
    - Special provision was made for additional representation of **professional** classes, the **landholders**, the **Muslims**, **universities** and **presidency corporations**, as well as **European and Indian commerce (chamber of commerce)**.
        - Lord Minto is thus known as the **Father of Communal Electorate.**
    - The electorate was based on high property qualifications and therefore was heavily restricted.
        - There were disparities too, as income qualifications for the Muslims were lower than those for the Hindus.
    - And above everything, the Government of India was given the general power to disallow any candidate from contesting the election on suspicion of being politically dangerous.

Analysis: *(shadow rather than substance)*

The makers of the Councils Act of 1909 wanted only apparent changes, and no real democratic change. Morley observed, *"If it could be said that this chapter of reforms led directly or indirectly to the establishment of a parliamentary system in India, I for one would have nothing at all to do with it."* It was clear that he was against introduction of parliamentary or responsible government in India. Thus, the Act failed to satisfy even the moderates.

- Congress wanted swaraj but there was **no trace of swaraj** in the provisions of this Act. The **reformed Councils didn't have any real power.**
    - The congress strongly opposed the **continuation of Veto powers** of governors and governor generals. *(maintained constitutional autocracy)*
    - The Legislative **Councils could just criticize** the government because there was no real power in the hands of members.
    - So, the **parliamentary forms without any responsibility of power.**
- **Electoral principle**
    - The congress was demanding direct elections and adult suffrage, but the system of **indirect elections** continued.
    - Voting rights was also granted based on **property qualifications**.
    - **Women** were not given any right to vote.
- **Separate electorates**
    - By this, the Muslim community was recognized as a completely separate section of the Indian nation. It was a **deliberate move on the part of British to divide Indians** as it **intensified the spirit of Muslim separatism** which was already in the air and led to the construction of communalism.
    - **With every revision** of the electoral system, similar demands emerged from other communities. This, it created cardinal problem
        - 1919: Sikhs, Indian Christians, Anglo-Indians, and Europeans
        - 1935: Schedule castes, working class

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